

TENTATIVE RULING

Case: State Farm Mutual Automobile Insurance Company v. Katirewa
Case No. CV2025-0416

Hearing Date: April 2, 2026 Department Fourteen 9:00 a.m.

Parties are **DIRECTED TO APPEAR.**

TENTATIVE RULING

Case: **Treadway et al v. Clark Pacific**
Case No. CV2025-0979

Hearing Date: **April 2, 2026** **Department Eleven** **9:00 a.m.**

The Court rules on plaintiffs Christopher Treadway and Justin Hernandez' evidentiary objections in support of their opposition to defendant Clark Pacific's demurrer to plaintiffs' amended PAGA representative complaint as follows:

- Plaintiffs' objections one through nine are **SUSTAINED**. (See *Ion Equip. Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881 [no extrinsic evidence can be considered upon demurrer]; *SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905 [extraneous matters unconnected to the complaint may not be considered upon demurrer].)
- The Court declines to rule on objection ten as the Court did not rely upon the paragraph challenged in determining this demurrer.

The Court rules on defendant's request for judicial notice as follows:

- As to request numbers one and four through thirteen, the Court **DENIES** these requests because the proffered documents are not relevant to the Court's determination of this demurrer. (Evid. Code, §§ 452, 453; see *People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6 [*Rowland*]; see also *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825 [*Malek*]; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)
- As to request number two, the Court **GRANTS** defendant's request. (Evid. Code, §§ 452, 453.)
- As to request number three, the Court **DENIES** defendant's request. (Evid. Code, §§ 452, subd. (h), 453; see *The Travelers Indemnity Co. of Connecticut v. Navigators Specialty Ins. Co.* (2021) 70 Cal.App.5th 341, 354-355 ["The existence and terms of a private agreement are not facts that are not reasonably subject to dispute and that can be determined by indisputable accuracy."]; see also *Gould v. Maryland Sound Industries, Inc.* (1995) 31 Cal.App.4th 1137, 1145 - 1146.)

Plaintiffs' request for judicial notice is **DENIED** because the proffered documents are not relevant to the Court's determination of the demurrer. (Evid. Code, §§ 452, 453; see *Rowland, supra*, 4 Cal.4th at p. 268, fn. 6; see also *Malek, supra*, 58 Cal.App.5th at p. 825; *People ex rel. Lockyer, supra*, 24 Cal.4th at p. 422.)

Plaintiffs' objection to defendant's request for judicial notice is **DENIED AS MOOT**.

Given that the Court sustained plaintiffs' objection to the admission of the collective bargaining agreement attached as Exhibit A the declaration of Kris Hansen and is not taking judicial notice